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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S MOTION TO STRIKE THE MAY 6, 2026
REPLY DECLARATION OF TYLER J. O'CONNELL
AND EXHIBIT A; OR, IN THE ALTERNATIVE, FOR
LEAVE TO FILE A SUR-REPLY

(Cal. Rules of Court, rules 3.1113(b), 3.1306(a); Code Civ. Proc.,
§1005(b))

Cross-noticed for pending defense hearings (this case, Dept. 302):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 13, 2026, 9:00 a.m.; Dept. 302; Hon. Joseph M. Quinn
(2)	Demurrer (CCP §430.10)	May 13, 2026, 9:00 a.m.; Dept. 302; Hon. Joseph M. Quinn
(3)	MTS (CCP §436)	May 13, 2026, 9:00 a.m.; Dept. 302; Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 I. TO THE COURT, THE CLERK, AND ALL PARTIES AND THEIR COUNSEL OF
2 RECORD

3 Pursuant to California Rules of Court, rule 3.1113(b), rule 3.1113(j), rule 3.1306(a), and the
4 Court's inherent authority to police the scope of reply papers, Plaintiff Dylan Franciscus
5 Rosario respectfully MOVES to STRIKE the Reply Declaration of Tyler J. O'Connell filed
6 May 6, 2026, in support of Defendant's Reply to Anti-SLAPP and Reply to Demurrer, in
7 particular paragraph 6 (the fee summary) and Exhibit A (the redacted billing summary), or,
8 in the alternative, for LEAVE to file a short sur-reply addressed only to those new matters.
9 The motion is brought on three separate and independently sufficient grounds: (A) the
10 targeted matter is new evidence and a new fee theory raised for the first time on Reply, in
11 violation of the rule against new matter on Reply; (B) Exhibit A is not contemporaneous
12 billing records and lacks the foundation required by Evidence Code sections 702, 1271, and
13 1521; and (C) the targeted matter was not the subject of any motion or noticed prayer at
14 the time the moving papers were filed and therefore was not within the issues opened by the
15 moving papers, in violation of CCP section 1005(b) and CRC 3.1113.

16 II. STATEMENT OF TARGETED MATTER

17 The targeted matter is:

- 18 1. Reply Declaration of Tyler J. O'Connell filed May 6, 2026, in support of Defendant's
19 Reply to Anti-SLAPP and Reply to Demurrer, paragraph 6, asserting an hour-by-hour
20 fee summary at \$210 per hour in support of a fee prayer first articulated in the body of
21 Defendant's Reply filed May 6, 2026.
- 22 2. Exhibit A to the May 6, 2026 O'Connell Reply Declaration, described as a redacted
23 billing summary, offered in support of paragraph 6 of the same declaration.

24 The fee theory underlying paragraph 6 and Exhibit A was not articulated in Defendant's
25 moving Notice of Motion and Special Motion to Strike Pursuant to C.C.P. section 425.16,
26 filed April 9, 2026 (Defendant's filings 015 to 018, filed April 9, 2026 (Trans. ID 79007560)),
27 nor in Defendant's Demurrer filed April 13, 2026 (Defendant's filings 019 to 023, filed April
28 13, 2026 (Trans. ID 79038567)), nor in Defendant's Motion to Strike Pursuant to C.C.P.
29 section 436 filed April 22, 2026 (Defendant's filings 041 to 044, filed April 22, 2026 (Trans.
30 ID 79127897)). None of the April 9, April 13, or April 22 moving papers contain a contem-
31 poraneous billing record, an hour-by-hour summary, or a fee declaration. The fee summary

appears for the first time in the May 6, 2026 Reply.

III. AUTHORITY AND APPLICATION

III.A THE RULE AGAINST NEW MATTER ON REPLY

California courts uniformly hold that points and evidence raised for the first time in a reply are improper and should be disregarded or stricken. (San Diego Watercrafts, Inc. v. Wells Fargo Bank (2002) 102 Cal.App.4th 308, 316 (reply evidence not considered without granting opposing party an opportunity to respond); Reichardt v. Hoffman (1997) 52 Cal.App.4th 754, 764 (the salutary rule is that reply briefs do not raise new points; otherwise the responding party has no opportunity to counter the argument); Jay v. Mahaffey (2013) 218 Cal.App.4th 1522, 1537 to 1538 (anti-SLAPP reply may not enlarge or change the moving papers' theory of relief).)

Here, the May 6, 2026 Reply enlarges the moving papers' relief by injecting a quantified fee prayer, and the May 6, 2026 O'Connell Reply Declaration paragraph 6 and Exhibit A inject the supporting evidentiary basis. Both are new matter. Both should be stricken under San Diego Watercrafts, Reichardt, and Jay v. Mahaffey.

III.B FOUNDATION DEFECTS IN EXHIBIT A

Even if Exhibit A could be considered, it fails Evidence Code foundational requirements. (Evid. Code section 702 (personal knowledge); section 1271 (business records mode-of-preparation foundation); section 1521 (best-evidence rule).) Exhibit A is a redacted summary, not contemporaneous billing records; the declarant lays no foundation for the mode of preparation, custody, or completeness of the underlying source records. The summary therefore cannot support the fee prayer it purports to substantiate. Plaintiff's contemporaneous Evidentiary Objections (filed May 8, 2026, Evidentiary Objections (item 06, filed May 8, 2026)) preserve the same Evidence Code 702, 1271, and 1521 objections in itemized form and are incorporated under CRC 3.1113(j).

III.C PROCEDURAL IRREGULARITY UNDER CCP SECTION 1005(B) AND CRC 3.1113

CCP section 1005(b) requires moving papers to articulate the relief sought sixteen court days before the hearing so the responding party has a full statutory window to oppose. (See also CRC 3.1113(b) (memorandum must contain a statement of the relief sought).) A fee prayer first quantified on Reply seven days before the hearing collapses the section 1005(b) window for that prayer to a fraction of the statutory minimum, and deprives Plaintiff of

1 the briefing opportunity the Legislature guaranteed. The same section 1005(b) and CRC
2 3.1300(d) chronology supporting Plaintiff's own May 8 cure is set forth in Plaintiff's Notice
3 of Withdrawal and Designation of Operative Oppositions (filed May 8, 2026, Notice of With-
4 drawal (item 02, filed May 8, 2026)), which demonstrates Plaintiff's own compliance with
5 section 1005(b) obligations while exposing the asymmetry of the defense fee-prayer timing.

6 III.D CRC 3.1306(A): WRITTEN RULING PER OBJECTION

7 Plaintiff respectfully requests that the Court enter a written ruling on each objection in
8 this motion and on each objection in the contemporaneous Evidentiary Objections (filed
9 May 8, 2026, item 06). California Rules of Court, rule 3.1306(a), and the Supreme Court's
10 instruction in Reid v. Google, Inc. (2010) 50 Cal.4th 512, 532, contemplate that objections
11 preserved on the record are ruled upon, and that silence is not equivalent to a sustained
12 objection. A per-objection ruling preserves the appellate record and avoids the Reid trap of
13 treating un-ruled objections as overruled by default.

14 IV. ALTERNATIVE RELIEF: LEAVE TO FILE A SHORT SUR-REPLY

15 If the Court declines to strike, Plaintiff alternatively requests leave under CRC 3.1113(b) and
16 the Court's inherent authority to file a short sur-reply (not exceeding three pages, double-
17 spaced, Times New Roman 12-point) addressed solely to: (a) the new fee theory in the
18 Reply; (b) the new evidence at O'Connell Reply Declaration paragraph 6; and (c) Exhibit
19 A. Plaintiff requests that any such leave order set a sur-reply due date no later than the
20 close of business on Monday, May 12, 2026, so that the sur-reply is before the Court for the
21 May 13, 2026 hearing.

22 V. CROSS-INCORPORATION

23 Plaintiff incorporates under CRC 3.1113(j): (1) Plaintiff's Evidentiary Objections to Decla-
24 rations of Tyler J. O'Connell filed April 9, 2026, April 13, 2026, April 22, 2026, April 23,
25 2026, and May 6, 2026 (filed May 8, 2026, item 06); (2) Plaintiff's Notice of Withdrawal and
26 Designation of Operative Oppositions (filed May 8, 2026, item 02); (3) Plaintiff's Operative
27 Opposition to Anti-SLAPP (filed May 8, 2026, Anti-SLAPP Opposition (item 01, filed May
28 8, 2026)), Section VIII (frivolousness inversion); (4) Plaintiff's Operative Opposition to De-
29 murrer (filed May 8, 2026, item 01B); and (5) Plaintiff's Notice and Statement re C.C.P.
30 section 425.17 (filed May 8, 2026, Notice re CCP 425.17 (item 13, filed May 8, 2026)), Section
31 VI (foundation defect in fee summary).

1 VI. PRAYER

2 Plaintiff respectfully requests that the Court:

- 3 1. STRIKE paragraph 6 and Exhibit A of the Reply Declaration of Tyler J. O'Connell
4 filed May 6, 2026; or, in the alternative, GRANT leave to file a short sur-reply on the
5 terms in Section IV above;
- 6 2. ENTER a written ruling per objection on this motion and on the contemporaneous
7 Evidentiary Objections (filed May 8, 2026), per CRC 3.1306(a) and Reid v. Google,
8 Inc. (2010) 50 Cal.4th 512, 532;
- 9 3. DECLINE to consider any fee prayer first quantified on Reply in the absence of foun-
10 dational evidentiary support; and
- 11 4. GRANT such further relief as the Court deems just.

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13 Cross-references: Plaintiff's Evidentiary Objections (filed May 8, 2026); Plaintiff's Notice of
14 Withdrawal and Designation (filed May 8, 2026); Plaintiff's Operative Opposition to Anti-
15 SLAPP (filed May 8, 2026) section VIII; Plaintiff's Operative Opposition to Demurrer (filed
16 May 8, 2026); Plaintiff's Notice and Statement re C.C.P. section 425.17 (filed May 8, 2026)
17 section VI.

18 _____

The foregoing is submitted by Plaintiff in pro per.

Dated: May 8, 2026



/s/ Dylan Franciscus Rosario

DYLAN FRANCISCUS ROSARIO

Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CRC 3.1113(b)	Memorandum and reply rule (San Diego Watercrafts line)	Section III.A invokes CRC 3.1113(b) and the San Diego Watercrafts / Reichardt / Jay v. Mahaffey line	Section III.A	PASS
2	CRC 3.1113(j)	Incorporation by reference	Section V incorporates Notice of Withdrawal and Designation, Evidentiary Objections, Notice re section 425.17, and Operative Oppositions	Section V	PASS
3	CRC 3.1306(a)	Written ruling per objection	Section III.D and Prayer paragraph 2 expressly request a per-objection written ruling, citing Reid v. Google	Section III.D; Prayer 2	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
4	CCP section 1005(b)	Notice timing for new fee theory	Section III.C identifies the 1005(b) timing failure of a fee prayer first quantified on Reply	Section III.C	PASS
5	Evid. Code section 702	Personal knowledge (foundation defect in Exhibit A)	Section III.B invokes Evid. Code section 702	Section III.B	PASS
6	Evid. Code section 1271	Business-records foundation (mode of preparation)	Section III.B invokes Evid. Code section 1271	Section III.B	PASS
7	Evid. Code section 1521	Best-evidence rule	Section III.B invokes Evid. Code section 1521	Section III.B	PASS
8	CCP section 425.16(c)(1)	Frivolousness inversion (cross-reference)	Section V cross-references Operative Opposition to Anti-SLAPP section VIII contingent cross-request	Section V	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
9	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Plaintiff's Consent to E-Service, filed March 6, 2026 (IFP; Register of Actions, CGC-25-631802))	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS
10	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS
11	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
12	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Graphic filing signature preceding roman appendix	PASS
13	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS
14	CRC 3.1112	Other papers; required components	Caption, motion body, signature page, and companion Proof of Service filed concurrently	Motion body; graphic signer before appendix; Proof of Service	PASS